

be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on September 09, 2027, at 8:30 a.m. in Dept. A.

The Court construes Petitioner’s verification of the Petition, requesting waiver of bond, as his consent to waiver.

If either proof (of service or publication) has not been made, the Court will be forced to DENY the Petition without prejudice. Service and publication are required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C); see also *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“[t]he court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question”].) Therefore, the Petition may not be heard unless and until an affidavit of publication, and proof of service of notice are on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no publication of the hearing was made and/or no proof of service of notice, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

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Estate of Manuel D Gomes

26PR000178

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is no proof of publication on file. If a proper proof of publication is filed prior to the hearing, the petition will be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on September 09, 2027, at 8:30 a.m. in Dept. A.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no publication of the hearing was made, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

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PETITION FOR ORDER AUTHORIZING COMPROMISE OF MINOR'S CLAIM (Pr.C. 3500 et seq.)

TENTATIVE RULING: The Petitioner is GRANTED. The Court sets the matter for Status Conference, to confirm purchase of annuities described in the petition, on November 04, 2026, at 8:30 a.m., in Dept. A.

The Court orders that Petitioner file one or more declaration(s) from Petitioner or Petitioner's counsel of record, under penalty of perjury, attesting to the truth of the following facts: (1) that declarant has reviewed the original annuity contract, (2) that the substantive terms of the annuity contract are the same as those set forth in the Petition, and (3) that a true and correct copy of the annuity contract is attached to the declaration. If such proof is filed at least five Court days prior to the hearing, the hearing may be vacated, and no appearance required.

If Petitioner fails to timely comply with the foregoing, the Court will require personal appearance of Petitioner and counsel, at the November 4, 2026, hearing, for purposes of explaining the failure to comply. The Court may issue an Order to Show Cause re: Monetary Sanctions or make other orders as may appear necessary.

Finally, the Court orders that attorney's fees and costs allowed in this matter shall remain in Petitioner's attorney's client trust account until any annuity described in the Petition has been purchased and proof conforming to the Court's requirements (set forth above) has been filed. This order applies only to fees and costs allocated or attributable to a minor's settlement; fees and costs incurred which pertain to settlements of non-minors are not implicated by this order.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Manuel Torres et al v. Jose Gomez et al

24CV001428

MOTION TO SET ASIDE/VACATE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING: The motion is GRANTED. The Clerk is ordered to set aside the Default and Default Judgment entered against Defendant Jose Gomez. Mr. Gomez is granted 10 calendar days' leave, from Notice of Entry of Order, to serve and file an Answer to the Complaint, in substantially the same form as the [Proposed] Answer submitted to the Court on August 28, 2026. The Clerk is to send notice of Entry of Order to the parties. The matter is set for Case Management Conference on January 20, 2027, at 8:30 a.m. in Dept. A.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of